



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session
Majority Research Staff*

[HB 2344](#): local government investment pool; treasurer

LIVINGSTON FLOOR AMENDMENT

1. Requires the Local Government Investment Pool be managed only by employees of the Office of the State Treasurer.
2. Allows the State Treasurer to confer with the State Board of Investment as necessary.

LIVINGSTON FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2344
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 35-326, Arizona Revised Statutes, is amended to
3 read:

4 35-326. Local government investment pool; prohibition;
5 definition

6 A. The state treasurer may maintain one or more pooled investment
7 funds for the collective investment of monies in this state. Securities
8 or other instruments in which the monies may be invested are those that
9 are provided for in article 2 of this chapter.

10 B. The state treasurer may deposit state monies in a pooled
11 investment fund and may also receive into a fund monies that are deposited
12 by any political subdivision or public entity in this state or public
13 trust that is legally authorized or required to deposit monies with the
14 state treasurer for investment. When a depositor provides monies to a
15 pooled investment fund, the state treasurer may require the depositor to
16 specify the date or dates on which it will require the monies. The assets
17 of a pooled investment fund shall be invested by the state treasurer for
18 such periods as will facilitate the return of the monies to the depositing
19 entities in accordance with the instructions received at the time of
20 deposit. Earnings shall be credited promptly after calculation.

21 C. The state treasurer shall compute on a monthly basis the rate of
22 earnings on the pooled investment fund for that month, and each depositor
23 shall be credited with an amount determined by applying the calculated
24 monthly rate to the principal amount of its deposit balance for the period
25 of the deposit. Interest shall be credited monthly.

26 D. The governing body of any political subdivision, public trust or
27 public entity, by adopting a resolution of continuing effect, may

1 authorize and request the state treasurer to invest monies for the
2 governing body pursuant to this section.

3 E. IF THE STATE TREASURER ESTABLISHES A LOCAL GOVERNMENT
4 INVESTMENT POOL PURSUANT TO THIS SECTION.] THE STATE TREASURER SHALL
5 MANAGE THE LOCAL GOVERNMENT INVESTMENT POOL ~~[AND MAY]~~ [BY USING ONLY
6 EMPLOYEES OF THE OFFICE OF THE STATE TREASURER AND MAY CONFER WITH THE
7 STATE BOARD OF INVESTMENT AS NECESSARY. THE STATE TREASURER MAY] ENTER
8 INTO A CONTRACT WITH A THIRD PARTY AS A CONTINGENCY IF THE STATE TREASURER
9 IS UNABLE TO CONDUCT THE STATE TREASURER'S FIDUCIARY DUTY.

10 ~~F.~~ F. For the purposes of this section, "political subdivision"
11 means any governmental entity operating under the authority of this state,
12 including a city, town, county, school district or community college
13 district or any other entity organized under state law.

14 Enroll and engross to conform

15 Amend title to conform

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C: JR

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